

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK-----X  
SHAWN RODRIGUEZ,

Plaintiff,

Index No.:

Date Purchased:

-against-

**Summons**

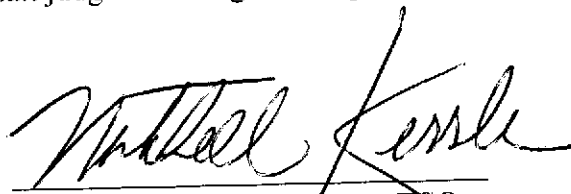
Place of Venue: New York County

CITY OF NEW YORK, CITY OF NEW YORK  
POLICE DEPARTMENT; POLICE OFFICER  
ANTHONY BARESI, Shield #3106, in his  
Individual and official capacity as an employee of the  
CITY OF NEW YORK POLICE DEPARTMENT;  
POLICE OFFICER JOHN DOES #1 through #6, in  
their individual official capacities as employees of the  
CITY OF NEW YORK POLICE DEPARTMENT,Basis of Venue: Plaintiff's  
ResidencePlaintiff Resides at:  
430 East 105<sup>th</sup> Street  
New York, New York 10029

Defendants.

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**TO THE ABOVE NAMED DEFENDANTS:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer on Plaintiff(s) Attorney within twenty (20) days after service of this Summons and Complaint, thirty (30) days, if not personally delivered to you within New York State. Failure to answer will result in a default judgment being taken against you for the amount demanded in the complaint.

Dated: New York, New York  
October 19, 2015**MITCHELL D. KESSLER, ESQ.**Attorney for Plaintiff  
Seven Penn Plaza, Suite 720  
370 Seventh Avenue  
New York, New York 10001  
(212) 967-7744

Defendants' Address:

ZACHARY W. CARTER, ESQ.  
Corporation Counsel City of New York  
Attorney for Defendants  
100 Church Street  
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
SHAWN RODRIGUEZ,

Plaintiff,

Index No.:

-against-

**VERIFIED COMPLAINT**

CITY OF NEW YORK, CITY OF NEW YORK  
POLICE DEPARTMENT; POLICE OFFICER  
ANTHONY BARESI, Shield #3106, in his  
Individual and official capacity as an employee of the  
CITY OF NEW YORK POLICE DEPARTMENT;  
POLICE OFFICER JOHN DOES #1 through #6, in  
their individual official capacities as employees of the  
CITY OF NEW YORK POLICE DEPARTMENT,

Defendants.

-----X

Plaintiff, by and through his attorney, MITCHELL D. KESSLER, ESQ., complaining of  
the defendant herein, upon information and belief, alleges as follows:

1. That at all times herein mentioned the plaintiff was and is a resident of the City and State of New York, County of New York.
2. Defendant CITY OF NEW YORK is a municipal corporation duly incorporated and authorized under the laws of the State of New York pursuant to § 431 of its Charter.
3. That on July 2, 2015, a Notice of Claim was duly served upon the defendant CITY OF NEW YORK.
4. That more than thirty (30) days have elapsed since the presentation of the aforesaid Notice of Claim and the Defendants have failed to make a reasonable offer of settlement, adjustment and/or payment.
5. The City of New York conducted plaintiff's Claimant's 50-h hearing on September 16, 2015.

6. This action has been commenced within one (1) year and ninety (90) days from the date Plaintiff's accident.

7. The CITY OF NEW YORK is authorized under the laws of the state of New York to maintain a police department, the NEW YORK POLICE DEPARTMENT ("NYPD") which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers.

8. At all relevant times, the City of New York and its NYPD hired, employed, supervised and controlled the individual Defendants.

9. Defendant Police Officer ANTHONY BARESI ("BARESI"), Shield Number 3106, is and/or was at all times relevant herein, an officer, employee, and agent of the NYPD, a municipal agency of the City. He is duly appointed and acting as a police officer of the NYPD. Defendant BARESI issued in his individual and official capacities.

10. Defendant police officers JOHN DOES #1 through #6 ("DOES") are and/or at all times relevant herein, officers, employees, and agents of the NYPD, a municipal agency of the City. Officer DOES are duly appointed and acting as police officers of the NYPD, a municipal agency of the City. Officer DOES are duly appointed and acting as police officers of the NYPD. Officer DOES are sued in their individual and official capacities.

11. Defendant BARESI and DOES #1 through #6, at all relevant times relevant herein, on duty with the NYPD on June 6, 2015.

12. At all times relevant herein, all named Defendant BARESI and DOES #1 through #6 were acting under the color of state law in the course and scope of their duties and functions as agents, employees and officers of the City and/or the NYPD in engaging in the conduct

described herein. At all times relevant herein, the individual Defendants have acted for an on behalf of the City and/or the NYPD with the power and authority vested in them as officers, agents and employees of the City and/or the NYPD and incident to the lawful pursuit of their duties as officers, employees and agents of the City and/or the NYPD.

### **STATEMENT OF FACTS**

13. On June 6, 2015, at approximately 4:30 A.M., Plaintiff SHAWN RODRIGUEZ, was in the lobby of his residence, 430 East 105<sup>th</sup> Street, New York, New York, when he was assaulted and beaten by New York City Police Officers and/or New York City Housing Police Officers. He was falsely arrested, falsely imprisoned, and maliciously prosecuted by the New York City Police Officers and/or New York City Housing Police Officers.

14. Plaintiff was processed and held in jail until his arraignment in Manhattan Criminal Court approximately 24 hours after his arrest. He was released on his own recognizance.

15. All criminal complaints, allegations and charges were sworn to under oath by Defendant BARESI as true, even though he knew them to be false.

16. At all times herein, the individual Defendants had no cause, let alone probable cause or reasonable suspicion, to arrest, exercise excessive force, charge and detain Plaintiff. Their actions were based on malice and bad faith and were supported by the false statements made by the Defendants under oath.

17. The conduct of the individual Defendants in restraining, arresting, striking, threatening and prosecuting the Plaintiff proximately caused physical, emotional and financial injury to him, as well as serious physical and emotional pain and suffering, mental anguish, shock, fright, physical pain, humiliation, embarrassment and deprivation of his constitutional rights. Plaintiff suffered the trauma, debasement and humiliation as a result of being publicly

adequately supervise and train its officers and agents, including the Defendants, thereby failing to adequately discourage further constitutional violations on the part of its police officers; (b) to properly and adequately monitor and discipline its officers, including Defendants; and (c) to adequately and properly investigate citizen complaints of police misconduct, instead, acts of misconduct were tolerated by the City of New York.

23. Upon information and belief, Defendant City of New York has, acting through its NYPD, developed, implemented, enforced, encouraged and sanctioned a de facto policy, practice, and/or custom of unlawfully interfering with and/or arresting individuals, without reasonable suspicion or probable cause.

24. Defendants' unlawful actions were done willfully, knowingly and with the specific intent to deprive Plaintiff of his constitutional rights under the First, Fourth, Fifth and Fourteenth Amendments to the U.S. Constitution.

25. Defendants have acted with deliberate indifference to the constitutional rights of Plaintiff. As a direct and proximate result of the acts as stated herein by each of the Defendants, the Plaintiff's constitutional rights have been violated which has caused them to suffer physical, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment.

**FIRST CLAIM FOR RELIEF**  
**42 U.S.C. § 1983 and Fifth and Fourteenth Amendments By Plaintiff**  
**Against Defendant BARESI and DOES #1 through #6**

26. Plaintiff repeats and re-alleges by reference paragraphs 1 through 25 as if fully set forth herein.

27. The acts of the individual Defendants, under color of state law, in arresting Plaintiff SIIAWN RODRIGUEZ, verbally abusing Plaintiff, and in physically assaulting Plaintiff were

racially motivated, undertaken without lawful justification, taken with deliberate indifference to Plaintiff's rights, and were designed to, and did, cause specific and serious bodily harm, pain and suffering to the Plaintiff in violation of his Constitutional rights as guaranteed by the Fifth and Fourteenth Amendments of the United States Constitution. Through these actions, Defendants are liable for violation of 42 U.S.C. § 1983 which prohibits the deprivation under color of state law of rights secured under the United States Constitution.

28. As a consequence of the individual Defendants' actions, Plaintiff has suffered violations of his due process rights under the Fifth and Fourteenth Amendments. Plaintiff has fear and apprehension that they will, again, be subject to similar unlawful acts by Defendants.

29. As a direct and proximate result of the Defendants' unlawful actions, Plaintiff has suffered, and will continue to suffer, damages including, physical, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment.

**SECOND CLAIM FOR RELIEF**  
**42 U.S.C. § 1983 and Fourth and Fourteenth Amendments By**  
**Plaintiff Against Defendant BARESI and DOES #1 through #6**

30. Plaintiff repeats and re-alleges by reference paragraphs I through 29 as if fully set forth herein.

31. By their conduct, as described herein, and acting under color of state law to deprive the Plaintiff of his rights to be free from unreasonable searches and seizures and arrest without reasonable suspicion or probable cause as required by the Fourth and Fourteenth Amendments, Defendants are liable for violation of 42 U.S.C. § 1983 which prohibits the deprivation under color of state law of rights secured under the United States Constitution.

32. As a direct and proximate result of Defendants' unlawful actions, Plaintiff has suffered, and will continue to suffer, damages including, physical, mental and emotional injury

and pain, mental anguish, suffering, humiliation and embarrassment.

**THIRD CLAIM FOR RELIEF**  
**42 U.S.C. § 1983 and Fourth and Fourteenth Amendments By**  
**Plaintiff Against Defendant BARESI and DOES #1 through #6**

33. Plaintiff repeats and re-alleges by reference paragraphs 1 through 32 if fully set forth herein.

34. By their conduct, as described herein, and acting under color of state law to deprive the Plaintiff of his rights to be free from excessive force in the course of an arrest as required by the Fourth and Fourteenth Amendments, the individual Defendants are liable for violation of 42 U.S.C. § 1983 which prohibits the deprivation under color of state law of rights secured under the United States Constitution.

35. As a direct and proximate result of Defendants' unlawful actions, Plaintiff has suffered, and will continue to suffer, damages including, physical, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment.

**FOURTH CLAIM FOR RELIEF**  
**42 U.S.C. § 1983 and Fourth and Fourteenth Amendments**  
**By Plaintiff Against Defendant BARESI and DOES #1 through #6**

36. Plaintiff repeats and re-alleges by reference paragraphs 1 through 35 as if fully set forth herein.

37. By their conduct, as described herein, and acting under color of state law, Defendants are liable to Plaintiff under 42 U.S.C. § 1983 for the violation, of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

38. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive Plaintiff of his constitutional rights. The prosecution by Defendants

of Plaintiff constituted malicious prosecution in that there was no basis for the Plaintiff's arrest, yet Defendants continued with the prosecutions, which were resolved in Plaintiff's favor.

39. As a direct and proximate result of Defendants' unlawful actions, Plaintiff has suffered, and will continue to suffer, damages including, physical, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment.

**FIFTH CLAIM FOR RELIEF**  
**42 U.S.C. § 1983 and Fifth and Fourteenth Amendments By**  
**Plaintiff Against Defendant BARESI and DOES #1 through #6**

40. Plaintiff repeats and re-alleges by reference paragraphs 1 through 39 as if fully set forth herein.

41. By their conduct, as described herein, Defendants are liable to Plaintiff under 42 U.S.C. § 1983 for the violation, under color of state law, of the constitutional right to be free from any deprivation of liberty without due process of law under the Fifth and Fourteenth Amendments to the United States Constitution.

42. As a direct and proximate result of Defendants' unlawful actions, Plaintiff has suffered, and will continue to suffer, damages including, physical, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment.

**SIXTH CLAIM FOR RELIEF**  
***(Monell Claim)***

43. Plaintiff repeats and re-alleges by reference paragraphs 1 through 42 as if fully set forth herein.

44. At all relevant times herein, Defendant City of New York, acting through its NYPD, developed, implemented, enforced, encouraged and sanctioned de facto policies, practices, and/or customs exhibiting deliberate indifference to the Plaintiff's constitutional rights which caused the violation of such rights.



45. Defendants' unlawful actions were done willfully, knowingly and with the specific intent to deprive Plaintiff of his constitutional rights under the First, Fourth, Fifth and Fourteenth Amendments to the U.S. Constitution.

46. The constitutional abuses and violations by Defendant City of New York, through the actions of its Police Department and all named Defendants, were and are directly and proximately caused by policies, practices and/or customs developed, implemented, enforced, encouraged and sanctioned by Defendant City of New York, including the failure: (a) to adequately supervise and train its officers and agents, including the Defendants, thereby failing to adequately discourage further constitutional violations on the part of its police officers; (b) to properly and adequately monitor and discipline its officers, including Defendants; and (c) to adequately and properly investigate citizen complaints of police misconduct, and, instead, acts of misconduct were tolerated by the City of New York.

47. Upon information and belief, Defendant City of New York has, acting through its NYPD, developed, implemented, enforced, encouraged and sanctioned a de facto policy, practice, and/or custom of unlawfully interfering with and/or arresting, without reasonable suspicion or probable cause, individuals who exercise their rights under the First Amendment by engaging in monitoring and documenting police activities and/or misconduct.

48. Defendants' unlawful actions were done willfully, knowingly and with the specific intent to deprive Plaintiff of his constitutional rights under the Fourth, Fifth and Fourteenth Amendments to the U.S. Constitution.

49. Defendants have acted with deliberate indifference to the constitutional rights of the Plaintiff. As a direct and proximate result of the acts as stated herein by each of the Defendants, the Plaintiff's constitutional rights have been violated which has caused him to suffer physical,

mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment.

50. Plaintiff has no adequate remedy at law and will suffer serious and irreparable harm to their constitutional rights unless Defendants are enjoined from continuing their unlawful policies, practices, and/or customs which have directly and proximately caused such constitutional abuses.

**SEVENTH CLAIM FOR RELIEF**  
**Article I, Section 11 of New York State Constitution**

51. Plaintiff repeats and re-alleges by reference paragraphs 1 through 50 as if fully set forth herein.

52. The acts of Defendants, acting under color of law, in arresting Plaintiff and in physically assaulting Plaintiff were racially motivated and were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering to the Plaintiff in violation of his Constitutional rights to equal protection as guaranteed by Article I, Section II of the Constitution of the State of New York.

53. The foregoing acts and conduct of Defendants were a direct and proximate cause of injury and damage to Plaintiff and violated his rights against discrimination as guaranteed by the Constitution of the State of New York.

**EIGHTH CLAIM FOR RELIEF**  
**Article I, Section 12 of New York State Constitution**

54. Plaintiff repeats and re-alleges by reference paragraphs 1 through 53 as if fully set forth herein.

55. The acts of Defendants, acting under color of law, in subjecting Plaintiff to unlawful search and seizure, arrest and excessive force by physically assaulting Plaintiff were done

without reasonable suspicion or probable cause and were designed to, and did cause, specific and serious bodily harm, pain and suffering to the Plaintiff in violation of his Constitutional rights to be secure in his person and against unreasonable search and seizure, as guaranteed by Article I, Section 12 of the Constitution of the State of New York.

56. The foregoing acts and conduct of Defendants were a direct and proximate cause of injury and damage to Plaintiff and violated his rights as guaranteed by the Constitution of the State of New York.

**NINTH CLAIM FOR RELIEF**  
**False Imprisonment**

57. Plaintiff repeats and re-alleges by reference paragraphs 1 through 56 as if fully set forth herein.

58. Defendants violated Plaintiff's personal liberty by acting in a manner which had the effect of confining him against his will and limiting his contact with anyone from the outside world. Defendants accomplished this restraint through express and implied threats of physical force and by acting in a manner which had the effect of threatening harm to Plaintiff.

59. As a proximate result of said conduct, Plaintiff has suffered and continues to suffer bodily injury, extreme mental distress, humiliation and anguish, and other emotional and physical injuries, as well as economic losses, all to his damage in amounts to be proven at trial.

60. Defendants committed the acts alleged herein maliciously, fraudulently and oppressively, with the wrongful intention of injuring Plaintiff, amounting to malice, and in conscious disregard of Plaintiff's rights. Plaintiff thus is entitled to recover punitive damages from Defendants in amounts to be proven at trial.

**TENTH CLAIM FOR RELIEF**  
**State Common Law Malicious Prosecution**

61. Plaintiff repeats and re-alleges by reference paragraphs 1 through 60 as if fully set forth herein.

62. By their conduct, as described herein, Defendants are liable to Plaintiff for having committed malicious prosecution under the laws of the State of New York.

63. Defendants maliciously commenced criminal proceedings against Plaintiff charging each of them with resisting arrest and obstruction of governmental administration. Defendants falsely and without probable cause charged Plaintiff with violations of the laws of the State of New York.

64. The commencement and continuation of the criminal proceedings against Plaintiff was malicious and without probable cause.

65. All charges were terminated in Plaintiff's favor.

66. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of Plaintiff. Defendant City of New York, as an employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

67. As a direct and proximate result of the misconduct and abuse of authority stated above, Plaintiff sustained the damages alleged herein.

**ELEVENTH CLAIM FOR RELIEF**  
**Common Law Negligence/Personal Injury**

68. Plaintiff repeats and re-alleges paragraphs 1 through 67 as if fully set forth herein.

69. On June 6, 2015, at approximately 4:30 A.M., Plaintiff SHAWN RODRIGUEZ, was in the lobby of his residence, 430 East 105<sup>th</sup> Street, New York, New York, when he was assaulted and beaten by New York City Police Officers and/or New York City Housing Police

Officers.

70. The acts of Defendants were negligent, careless and/or reckless, and did cause serious bodily harm, pain and suffering to the Plaintiff.

71. As a result of the foregoing plaintiff has been damaged in a sum of money which exceeds the jurisdiction of the lower Courts otherwise having jurisdiction herein.

**TWELFTH CLAIM FOR RELIEF**  
***(Respondeat Superior)***

72. Plaintiff repeats and re-alleges paragraphs 1 through 71 as if fully set forth herein.

73. The conduct of Defendants Stevens and Doe ##1 and 2 occurred while they were on duty and in uniform, in and during the course and scope of their duties and functions as New York City Police Officers and while they were acting as agents and employees of the Defendant City of New York. Defendant City of New York is liable to Plaintiff under the common law doctrine of *respondeat superior*.

**PRAYER FOR RELIEF**

WHEREFORE, Plaintiff prays for relief as follows:

(a) A declaration that Defendants' conduct violated the Fourth, Fifth, and Fourteenth Amendments to the U.S. Constitution and Plaintiff's rights under the New York State Constitution and state common law in the manners alleged herein, upon consideration of the evidence adduced at trial or otherwise;

(b) Award Plaintiff compensatory damages against the Defendants, including, but not limited to any emotional distress, recompensable costs related to criminal defenses, and any other compensatory damages as permitted by law and according to proof at trial;

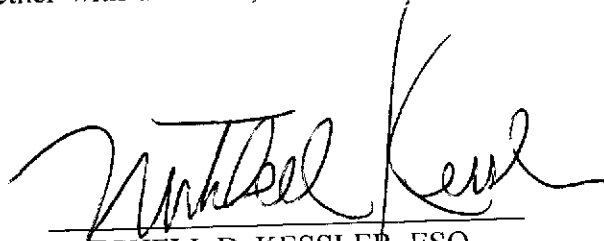
(c) Award Plaintiff punitive damages;

(d) Award attorneys' fees pursuant to 42 U.S.C. § 1988;

- (e) Award costs of suit pursuant to 42 U.S.C. §§ 1920 and 1988; and,
- (f) Award such other and further relief as this Court may deem appropriate and equitable, including injunctive and declaratory relief as may be required in the interests of justice.

WHEREFORE, plaintiff demands judgment against the defendants herein, as to all Causes of Action in a monetary sum which exceeds the jurisdictional limits of all lower courts otherwise having jurisdiction herein together with the costs, disbursements and interest of this action.

Dated: New York, New York  
October 19, 2015



MITCHELL D. KESSLER, ESQ.  
Attorney for Plaintiff  
Seven Penn Plaza, Suite 720  
370 Seventh Avenue  
New York, New York 10001  
(212) 967-7744

**INDIVIDUAL VERIFICATION**

STATE OF NEW YORK)

COUNTY OF NY ) ss.:

Shawn Rodriguez being duly sworn, deposes and says:

That I am the plaintiff in the within action.

I have read the foregoing COMPLAINT and know the contents thereof, that the same is true to the best of my knowledge, except as to those matters therein stated to be alleged upon information and belief, and that as to those matters, I believe them to be true.

Dated: Bronx, New York  
19 day of OCT, 2015

X Shawn Rodriguez

Sworn to before me this  
19 day of OCT, 2015

[Signature]  
Notary Public, State of New York  
No. 01LA8053484  
Qualified in New York County  
Commission Expires Jan. 8, 2019

Index No.:

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COUNTY OF NEW YORK

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Plaintiff,

-against-

CITY OF NEW YORK, CITY OF NEW YORK  
POLICE DEPARTMENT; POLICE OFFICER  
ANTHONY BARESI, Shield #3106, in his  
Individual and official capacity as an employee of the  
CITY OF NEW YORK POLICE DEPARTMENT;  
POLICE OFFICER JOHN DOES #1 through #6, in  
their individual official capacities as employees of the  
CITY OF NEW YORK POLICE DEPARTMENT,

Defendants.

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**Summons and Verified Complaint**

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MITCHELL D. KESSLER, ESQ.  
Attorney for Plaintiff  
Seven Penn Plaza, Suite 720  
370 Seventh Avenue  
New York, New York 10001  
(212) 967-7744

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